

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

THEODORE TUCKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, LIEUTENANT ANTHONY
RONDA, POLICE OFFICER JAMAL HAIRSTON,
DETECTIVE JOSEPH ABEL, DETECTIVE KEITH
CARPENTER, DETECTIVE ORTIZ, DETECTIVE
HEREDIA, DETECTIVE UC#C0039, DETECTIVE
UC#C0243, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 12, 2014

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Lieutenant Anthony Ronda, Police Officer Jamal Hairston, Detective Joseph Abel,
Detective Keith Carpenter, Detective Ortiz, Detective Heredia, Detective UC#CO243,
UC # C0039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

THEODORE TUCKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, LIEUTENANT ANTHONY
RONDA, POLICE OFFICER JAMAL HAIRSTON,
DETECTIVE JOSEPH ABEL, DETECTIVE KEITH
CARPENTER, DETECTIVE ORTIZ, DETECTIVE
HEREDIA, DETECTIVE UC#C0039, DETECTIVE
UC#C0243, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff THEODORE TUCKER, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 28, 2012, at approximately 12:30 p.m., plaintiff Theodore Tucker, while lawfully present in the vicinity of 1st Avenue and 105th Street, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was subjected to a unlawful strip search and a malicious prosecution by the defendant police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, strip searched and subjected him to a malicious prosecution in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff THEODORE TUCKER is a resident of the state of New York.

3. LIEUTENANT ANTHONY RONDA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. LIEUTEANT ANTHONY RONDA is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

5. LIEUTENANT ANTHONY RONDA is being sued in his individual and official capacity.

6. POLICE OFFICER JAMAL HAIRSTON, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER JAMAL HAIRSTON is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

8. POLICE OFFICER JAMAL HAIRSTON is being sued in his individual and official capacity.

9. DETECTIVE JOSEPH ABEL, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. DETECTIVE JOSEPH ABEL is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

11. DETECTIVE JOSEPH ABEL is being sued in his individual and official capacity.

12. DETECTIVE KEITH CARPENTER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE KEITH CARPENTER is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

14. DETECTIVE KEITH CARPENTER is being sued in his individual and official capacity.

15. DETECTIVE ORTIZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE ORTIZ is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

17. DETECTIVE ORTIZ is being sued in his individual and official capacity.

18. DETECTIVE HEREDIA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. DETECTIVE HEREDIA is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

20. DETECTIVE HEREDIA is being sued in his individual and official capacity.

21. DETECTIVE UC#C0243, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. DETECTIVE UC#C0243 is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

23. DETECTIVE UC#C0243 is being sued in his individual and official capacity.

24. DETECTIVE UC#C0039, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. DETECTIVE UC#C0039 is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan North.

26. DETECTIVE UC#C0039 is being sued in his individual and official capacity

27. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Police Officers John Does #1-4 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of

a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

32. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

33. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

34. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

35. On January 28, 2012, at approximately 12:30 p.m., plaintiff was lawfully in the vicinity of 1st Avenue and 105th Street, New York, New York.

36. As plaintiff was lawfully present at said location, the individually named defendant police officers unlawfully approached and stopped plaintiff, without reasonable suspicion, probable cause, or any legal justification.

37. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

38. Thereafter, the defendant police officer unlawfully searched and frisked plaintiff, touching all areas of his body over his clothing and inside of all of his pockets.

39. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff.

40. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

41. At no time did plaintiff resist arrest in anyway.

42. Thereafter, plaintiff was transported to the 23rd precinct.

43. While at the precinct plaintiff was unlawfully strip searched, despite the fact that the defendant officers lacked reasonable suspicion or probable cause to believe he secreted and illegal drugs, weapons, or contraband underneath his clothing or inside of a body cavity.

44. Plaintiff was unlawfully fingerprinted, photographed, and placed in a holding cell for several hours.

45. Thereafter, claimant was transported to Manhattan Central Booking where he was unlawfully detained in holding cells for many hours.

46. The defendant police officers falsely communicated false, misleading and/or incomplete information to the New York County District Attorney's Office in support of the officers' false contention that plaintiff had committed a crime.

47. On February 1, 2012, at approximately 9:00 p.m. claimant was arraigned in New York County Criminal Court and based upon the false information provided to the DA's Office by defendants, he was unlawfully charged with serious felony crimes that he did not commit.

48. Claimant was forced to make numerous court appearances during the approximately 18 month prosecution against him.

49. On or about August 13, 2013, claimant was acquitted of all charges brought against him during the criminal prosecution.

50. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search, and malicious prosecution of plaintiff.

51. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers arrest individuals that they suspect to be involved in a narcotics transaction, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

52. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally arresting individuals they suspect to be involved in a drug transaction, but without probable cause or reasonably articulable suspicion to believe they violated a specific law, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this conduct, there is a pattern, policy, custom or practice of New York City Police Officers arresting individuals they suspect to be involved in a drug transaction, but without probable cause or reasonably articulable suspicion to believe they violated a specific law.

53. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search and malicious prosecution against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma, as well as economic damage and loss of employment.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, unlawfully strip searched and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, Frisk, Search, and Strip Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The conduct of defendants in stopping, frisking, searching, frisking, and later strip searching plaintiff were performed under color of law and without any reasonable suspicion or probable cause of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Negligence

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants owed a duty of care to plaintiff.

Defendants breached that duty of care by unlawfully stopping, questioning, frisking, searching falsely arresting, illegally strip searching searching, and maliciously prosecuting plaintiff.

69. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

70. All of the foregoing occurred without any fault or provocation by plaintiff.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Theodore Tucker. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

75. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

79. Defendants commenced and continued a criminal proceeding against plaintiff.

80. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

81. The prosecution and criminal proceedings terminated favorably to plaintiff on August 13, 2013.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, economic and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

92. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting individuals they suspect to be involved in a drug transaction, but without probable cause or reasonably articulable suspicion to believe they violated a specific law, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

93. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

94. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

95. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

96. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

97. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Theodore Tucker demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 12, 2014

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 12, 2014

/s./
DAVID M. HAZAN